

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHASEN PAUL DAVID GONZALES,

Petitioner

VS.

CHIPONGOLO MULENGA,

Respondent

) Case Number: FPT-24-378337

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Chasen Paul David Gonzales (Father) and Chipongolo Mulenga (Mother) have one minor child together, Ethan (DOB 7/22/2023, age 3). Father lives in San Francisco; Mother lives in Walnut Creek. On 12/4/2024, a stipulated 4-year Domestic Violence Restraining Order was issued against Father, protecting Mother.
- 2) On 10/2/2025, the Court found Father had overcome the Family Code section 3044 presumption against joint custody but found it was in Ethan's best interest for Mother to retain sole legal and physical custody. The Court expressed concern about the parties' poor communication and ordered them to continue working on their coparenting skills. The Court ordered a parenting time schedule for Father from Thursday to Friday during Week A and Thursday to Sunday during Week B.
- 3) On 1/6/2026, Father filed a request for joint legal custody, a two-phase transition into a 2-2-5-5 parenting time schedule, and a holiday schedule. At a 4/21/2026 hearing, the Court maintained the custody and parenting time order, set a holiday schedule, and granted Father's request to

1 travel with Ethan out of state from 7/1/2026 to 7/7/2026. The Court set a review hearing for
2 7/21/2026, which was continued to 9/1/2026 after Mother retained new counsel and requested a
3 brief continuance.

- 4 4) Mother filed declarations on 7/21/2026 and 8/21/2026. Father filed an update declaration on
5 7/29/2026. The Court has reviewed and considered the parties' declarations, including both
6 parties' statements regarding the injuries Ethan sustained while in Father's care, Mother's
7 statements regarding Ethan's enrollment in the same daycare in Walnut Creek since April 2025
8 and in a speech program through the Walnut Creek School District, Father's statement that Ethan
9 has been doing well in his care and his renewed request for a 2-2-5-5 schedule, and both parties'
10 concerns regarding coparenting and communication, including Father's concerns regarding notice
11 of Mother's recent international travel.

12 **B. Findings and Orders**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child is the United States.
- 17 2) The Court finds it is in Ethan's best interest for the parties to share joint legal and physical
18 custody. Commencing the week of 9/9/2026, Father shall have parenting time as follows:
- 19 a. Week A: Wednesday afternoon Walnut Creek daycare pickup (or 6pm pickup at Walnut
20 Creek Library if no daycare) until Friday at 6pm exchange at Wow Kids on Polk Street in
21 San Francisco;
- 22 b. Week B: Wednesday afternoon Walnut Creek daycare pickup (or 6pm pickup at Walnut
23 Creek Library if no daycare) until Sunday at 6pm exchange at Wow Kids on Polk Street
24 in San Francisco.
- 25 3) The above schedule permits Mother to maintain Ethan's enrollment in his daycare/preschool in
26 Walnut Creek on Mondays, Tuesdays, and Wednesdays. In addition, Father may enroll Ethan in a
27 daycare or preschool in San Francisco on his custodial days—Thursdays and Fridays. Father shall
28 provide all information regarding the daycare/preschool he has proposed to Mother in advance of
29 enrollment, and Mother shall cooperate with the signing of any documents necessary for

1 enrollment. The parties shall ensure that both parties are listed as authorized to pick up Ethan and
2 as emergency contacts for all daycares/preschools in which Ethan is enrolled, regardless of
3 location (e.g., San Francisco, Walnut Creek). If and when Ethan is enrolled in a
4 daycare/preschool in San Francisco, the exchange location for the Week A Friday pickup shall be
5 modified so that Mother picks Ethan up from the San Francisco daycare/preschool.

6 4) All prior orders not in conflict with these orders shall remain in full force and effect.

7 5) Father's attorney shall prepare the Findings and Order After Hearing and an amended DVRO.

8 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
9 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
10 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
11 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
12 proposed order after hearing directly to the court. Failure to submit the order after hearing within
13 10 days may allow the other party to prepare a proposed order and submit it to the court in
14 accordance with CA Rules of Court, Rule 5.125(d).